Insertion of new section 8A.

156. After section 8 of the Union Territory Goods and Services Tax Act, the following section shall be inserted, namely:—

"8A. *Power not to recover Goods and Services Tax not levied or short-levied as a result of general practice.*— Notwithstanding anything contained in this Act, if the Government is satisfied that—

(*a*) a practice was, or is, generally prevalent regarding levy of Union territory tax (including non-levy thereof) on any supply of goods or services or both; and

(*b*) such supplies were, or are, liable to—

(*i*) Union territory tax, in cases where according to the said practice, Union territory tax was not, or is not being, levied; or

(*ii*) a higher amount of Union territory tax than what was, or is being, levied, in accordance with the said practice,

the Government may, on the recommendation of the Council, by notification in the Official Gazette, direct that the whole of the Union territory tax payable on such supplies, or, as the case may be, the Union territory tax in excess of that payable on such supplies, but for the said practice, shall not be required to be paid in respect of the supplies on which the Union territory tax was not, or is not being, levied, or was, or is being, short-levied, in accordance with the said practice.".

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT